

23STCV29685 23STCV29685

County: los-angeles

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Case Number: 23STCV29685 Hearing Date: September 18, 2026 Dept: 1

Final Approval of Class Action

Settlement

Department SSC-1

Woldemariam v. All Nippon Airways Co. Ltd.

Case No.: 23STCV29685

Hearing Date: September 18, 2026

TENTATIVE

RULING

The Court's tentative ruling is to

GRANT final approval, contingent on counsel addressing the following concerns. Class Members' Response Deadline is August

28, 2026 and the Extended Response Deadline for Class Members who received a
remailed notice is September 14, 2026. (Alaya Decl., ¶10.) As the
administrator's declaration is dated August 20, 2026, the Court requires an
updated declaration reporting any further responses from Class Members. (See
Ayala Decl., passim.) Counsel are to provide an updated declaration from
the Administrator now that the Response Deadline and Extended Deadline have
passed.

When this contingency is satisfied,

the Court will grant final approval and award the following:

(1) \$216,666.66 for attorney fees to Class Counsel; (2) \$22,612.10 for attorney costs to Class Counsel; (3)

enhancement payments of \$7,500 to Plaintiff Woldemariam; (4) \$52,500 (75% of \$70,000 PAGA penalty) to the LWDA; and (5) \$5,990 for settlement administration costs to Apex Class Action, LLC.

BACKGROUND

This is a wage and hour class action.

Defendant is an airline company which offers daily passenger flights to/from the county of Los Angeles, where Plaintiff worked.

On September 28, 2023, Plaintiff initiated this action by serving Defendant and the California Labor and Workforce Development Agency ("LWDA") with a Notice of Alleged Labor Code Violations ("PAGA Notice").

On December 5, 2023, Plaintiff filed a class action complaint action against Defendant for: (1) Failure to Pay Overtime Wages in Violation Of Cal. Lab. Code §§ 510 and 1198; (2) Failure to Provide Required Meal Periods in Violation Of Cal. Lab. Code §§ 226.7 & 512(a) and the Applicable IWC Wage Order; (3) Failure to Provide Required Rest Periods in Violation Of Cal. Lab Code § 226.7 and the Applicable IWC Wage Order; (4) Failure to Pay Minimum Wages in Violation Of Cal. Lab. Code §§ 1194, 1197 & 1197.1; (5) Failure to Provide Final Wages When Due in Violation Of Cal. Labor Code §§ 201 and 202; (6) Failure to Provide Wages During Employment When Due in Violation Of Cal. Labor Code § 204; (7) Failure to Provide Accurate Itemized Statements in Violation Of Cal. Lab. Code § 226(a); (8) Failure to Maintain Requisite Payroll Records in Violation of Cal. Lab. Code § 1174(d); (9) Failure to Reimburse Employees for Required Expenses in Violation of Cal. Lab. Code §§ 2800 and 2802; and (10) Unfair Competition in Violation of Cal. Bus. & Prof. Code §§ 17200, et seq.

On December 5, 2023, Plaintiff filed a separate representative PAGA complaint in the Los Angeles Superior Court, Case No. 23TRCV04045, alleging a single cause of action for violations of the California Labor Code § 2698, et seq. ("PAGA Action").

On April 7, 2026, Plaintiff filed the Operative First Amended Complaint alleging the following causes of action: (1) Violation of California Labor Code §§ 510 and 1198 (Unpaid Overtime); (2) Violation of California Labor Code §§ 226.7 and 512(a) (Unpaid Meal Period

Premiums); (3) Violation of California Labor Code § 226.7 (Unpaid Rest Period Premiums); (4) Violation of California Labor Code §§ 1194, 1197, and 1197.1 (Unpaid Minimum Wages); (5) Violation of California Labor Code §§ 201 and 202 (Final Wages Not Timely Paid); (6) Violation of California Labor Code § 204 (Wages Not Timely Paid During Employment); (7) Violation of California Labor Code Statements); (8) Violation of California Labor Code § 1174(d) (Failure To Keep Requisite Payroll Records); (9) Violation of California Labor Code §§ 2800 and 2802 (Unreimbursed Business Expenses); (10) Violation of California Business & Professions Code §§ 17200, et seq; (11) Violation of California Labor Code § 2698, et seq. (California Labor Code Private Attorneys General Act of 2004).

On April 9, 2026, the PAGA Action was dismissed without prejudice.

Counsel represents that prior to mediation the parties engaged in investigation and discovery wherein: 1) Class Counsel requested Plaintiff's employee file from Defendant; 2) Defendant produced various documents, including but not limited to, copies of Plaintiff's payroll records and applicable company policies during the Class Period; 3) Defendant produced time and payroll records, along with copies of applicable handbooks, policies, and agreements; and 4) Lawyers for Justice, PC., created several damage models predicated on the analysis of the data provided by Defendant.

On September 24, 2024, the Parties participated in a full day mediation presided over by Steven Rottman, Esq. Although the Parties did not settle at mediation, after continued negotiations and bargaining, the Parties reached an agreement to settle the matter and signed a Memorandum of Understanding on March 31, 2025. A partially executed long form Settlement Agreement was filed with the Court on January 16, 2026 attached to the Declaration of Shani O. Zakay ("Zakay Decl.") ISO Preliminary Approval as Exhibit 1.

On May 1, 2026, the Court continued preliminary approval for further briefing and revisions. In response, on June 21, 2026, counsel filed a fully executed Amended Settlement Agreement attached to the Declaration of Nicole Noursamadi ("Noursamadi Decl.") ISO Preliminary Approval as Exhibit 1.

On June 1, 2026, the Court continued preliminary approval for further briefing and revisions. In response, on June 18, 2026, counsel filed a fully executed Second Amended Settlement Agreement attached to the Supplemental Declaration of Nicole Noursamadi ("Noursamadi Supp. Decl.") ISO Preliminary Approval as Exhibit 1.

Preliminary Approval was granted on June 24, 2026. Notice was given to the Class Members as ordered. (See Declaration of Norma Ayala ("Ayala Decl.").)

CLASS

DEFINITION AND ESSENTIAL MONETARY TERMS OF SETTLEMENT AGREEMENT

“Class” means all current and former non-exempt employees of ANA within the State of California from December 5, 2019, through December 31, 2024. (Settlement Agreement, ¶1.6.)

“Class Period” means the period from December 5, 2019, through December 31, 2024. (¶1.13)

The Class List consisted of a total of 244 individuals. (Ayala Decl., ¶5.)

“Aggrieved Employee” means all current and former non-exempt employees of ANA within the State of California from September 28, 2022, through December 31, 2024. (¶1.5)

“PAGA Period” means the period from September 28, 2022, through December 31, 2024. (¶1.32)

There are 168 Aggrieved Employees who worked a total of 6,759 PAGA Pay Periods during the PAGA Period. (Ayala Decl., ¶17.)

Based on a review of its records,

Defendant estimated that there are 244 current and former non-exempt employees who worked approximately 32,300 workweeks in California during the Class Period and 17,200 pay periods during the PAGA Period. (¶4.1) If the qualifying pay periods increase beyond ten percent (10%) worked by the Class Members during the Class Period, the Defendant shall increase the Gross Settlement Amount on a pro rata basis equal to the percentage in the number of pay periods worked by the Class Members above ten percent (10%) (e.g., if the number of pay periods increases by 11% to 18,920 pay periods, the Gross Settlement Amount will increase by 1%). (¶8)

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The total number of Workweeks worked by Participating Class Members during the Class Period is 32,216. (Ayala Decl., ¶15.)

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The

Gross Settlement Amount ("GSA") is \$650,000, non-reversionary. (¶3.1)

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The

Net Settlement Amount ("Net") (\$326,500) is the GSA minus the following:

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Up to

\$227,500 (35%) for attorney fees (¶3.2.2)

§ Fee Split: 85% to Lawyers for Justice, PC; 7.5% to JCL

Law Firm; and 7.5% to Zakay Law Group, APLC. (Declaration of Maria Halwadjian ("Halwadjian Decl.") ISO Preliminary Approval, ¶19.)

o Up to \$30,000 for litigation costs

(¶3.2.2);

o Up to \$7,500 for Service Payment to

the Named Plaintiff (¶3.2.1);

o Up to \$6,000 for settlement

administration costs (¶3.2.3);

o Payment of \$52,500 (75% of \$70,000
PAGA penalty) to the LWDA. (¶3.2.5)

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Defendant

will also pay employer-side taxes. (¶3.1)

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Funding

of GSA: Defendant shall fund the Gross Settlement Amount (i.e., \$650,000.00)
plus the employer payroll taxes and contributions owed on the Wage Portions of
the Individual Settlement Shares by transmitting the funds to the Administrator
no later than thirty (30) calendar days after the Effective Date. (¶4.3)

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There is no claim form
requirement. (¶3.1)

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Uncashed Settlement Checks: The Administrator will cancel all checks
after the void date (not less than 180 days after the date of mailing).
(¶4.4.3) The Administrator shall transmit the leftover funds represented by
canceled Individual Settlement Payment and Individual PAGA Payment checks to
the California Controller's Unclaimed Property Fund in the name of the Class
Member or Aggrieved Employee thereby leaving no "unpaid residue" subject to the
requirements of California Code of Civil Procedure section 384, subd. (b).
(¶4.4.5)

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Scope of the Release: Upon
the Effective Date and full funding of the Gross Settlement Amount (including
all employer payroll taxes owed on the Wage Portion of the Individual
Settlement Shares), Plaintiff, all Participating Class Members, and Aggrieved
Employees, the LWDA, and Class Counsel will release claims against all Released
Parties as follows: (¶5)

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Upon

the Effective Date and funding in full of the Gross Settlement Amount by
Defendant, for the duration of the Class Period, all Participating Class

Members, including Plaintiff, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, release Released Parties from any and all claims, demands, rights, liabilities, and causes of action that were or could reasonably have been pleaded under local, state or federal law based on facts alleged in the Operative Complaint. Released Class Claims also includes any claims that arise from, are related to, or are otherwise reasonably connected with the facts alleged in the Operative Complaint. Except as set forth in Section 5.3 of this Agreement, Participating Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts occurring outside the Class Period. It is the intent of the Parties that the Final Judgment entered by the Court shall have full equitable estoppel and res judicata effect and be final and binding upon the Class Representative and the Participating Class Members regarding the Released Class Claims. Each Participating Class Member will be deemed to have made the foregoing Release as if by manually signing it. (§5.4)

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Upon

the Effective Date and funding in full of the Gross Settlement Amount by Defendant, all Aggrieved Employees, including Plaintiff, whether or not they are a Participating Class Member, are deemed to release, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, the Released Parties from any and all claims for civil penalties under PAGA arising from the pleaded claims in the complaint in the PAGA Action and the September 28, 2023, PAGA Notice for the entire duration of the PAGA Period. (§5.5)

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The

named Plaintiff will also provide a general release and 1542 waiver.
(§§5.1-5.3.)

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Counsel has submitted the proposed

settlement agreement to the LWDA on January 16, 2026. (Exhibit 2 to Zakay Decl.. ISO Preliminary Approval, Ex. 4.)

ANALYSIS OF

SETTLEMENT AGREEMENT

A.

Does

a presumption of fairness exist?

The Court preliminarily found in

its Order on June 24, 2026 that the presumption of fairness should be

applied. No facts have come to the

Court's attention that would alter that preliminary conclusion. Accordingly, the settlement is entitled to a

presumption of fairness as set forth in the preliminary approval order.

B. Is the settlement

fair, adequate, and reasonable?

The settlement was preliminarily found to be

fair, adequate and reasonable. Notice

has now been given to the Class and the LWDA.

Reaction of the class

members to the proposed settlement.

Number of class

members: 244 (Ayala Decl., ¶5.)

Number of notice

packets mailed: 244 (Id. at ¶7.)

Number of

undeliverable notices: 3 (Id. at ¶9.)

Number of

opt-outs: 0 (Id. at ¶11.)

Number of

objections: 0 (Id. at ¶12.)

Number of

participating class members: 244 (Id. at ¶14.)

Average

individual payment: \$1,266.43 (Id. at ¶16.)

Highest individual

payment: \$2,551.42 (Ibid.)

Lowest individual

payment: \$9.59 (Ibid.)

Number

of Aggrieved Employees: 168 (Id. at ¶17.)

Average

PAGA payment: \$104.17 (Id. at ¶18.)

Highest PAGA

payment: \$142.40 (Ibid.)

Lowest PAGA

payment: \$2.59 (Ibid.)

The Response Deadline is August 28, 2026 and the Extended Response Deadline for Class Members who received a remailed notice is September 14, 2026. (Alaya Decl., ¶10.) The administrator's declaration is dated August 20, 2026. (See Ayala Decl., passim.) Counsel are to provide an updated declaration from the Administrator now that the Response Deadline and Extended Deadline have passed.

The Court finds that the notice was given as directed and conforms to due process requirements. Given the reactions of the Class Members and the LWDA to the proposed settlement and for the reasons set for in the Preliminary Approval order, the settlement is found to be fair, adequate, and reasonable.

C.

Attorney

Fees and Costs

Class Counsel

request an award of \$227,500 (35%)

in fees and \$22,612.10 in costs. (Motion
ISO Fees, 13:19-21, 15:2-6.)

The Settlement Agreement provides for fees up
to \$227,500 (35%) in fees and \$30,000 in costs (Settlement
Agreement ¶3.2.2); class members were provided notice of the requested awards
and none objected. (Ayala Decl.,
¶12 and Exhibit A thereto.)

The
following fee split has been agreed to herein: 85% to Lawyers for Justice, PC; 75% to JCL
Law Firm; and 7.5% to Zakay Law Group, APLC. (Declaration of Maria Halwadjian ("Halwadjian Decl.") ISO
Preliminary Approval, ¶19.)

"Courts recognize two methods for
calculating attorney fees in civil class actions: the lodestar/multiplier
method and the percentage of recovery method."
(Wershba v. Apple Computer, Inc. (2001)
91 Cal.App.4th 224, 254.) Here, class counsel request attorney fees using
the percentage method and via loadstar crosscheck. (Motion ISO Fees,
pgs. 2-13.)

In common fund cases, the Court may
employ a percentage of the benefit method, as cross-checked against the
lodestar. (Laffitte v. Robert Half Int'l,
Inc. (2016) 1 Cal.5th 480, 503.) The
fee request represents 35% of the gross settlement amount, which is above
the average generally awarded in class actions.
(See In re Consumer Privacy Cases
(2009) 175 Cal.App.4th 545, 558, fn. 13 ["Empirical studies show that,
regardless whether the percentage method or the lodestar method is used, fee
awards in class actions average around one-third of the recovery."].)

Counsel
has provided the following loadstar information:

Biller

Rate

Hours

Total

Lawyers for
Justice, APC

\$475- \$1,050

224.20

\$190,570.00

Zakay Law Group

\$375 - \$800

41.0

\$22,675.00

JCL Law Firm, APC

\$250 - \$850

38.9

\$22,795.00

TOTAL

304.1

\$236,040.00

(Matavosian Decl. ISO Final, ¶¶29-30 and Exhibit A thereto; Lapuyade Decl.
ISO Fees, ¶¶5, 8 and Exhibit 2 thereto; Zakay Decl. ISO Fees, ¶¶7-9 and Exhibit
3 thereto.)

Therefore,

counsel have spent a total of 304.1 hours for a total lodestar of \$236,040, which would require a small negative multiplier to yield the requested fee amount. (Ibid.) Notice of the fee request was provided to class members in the notice packet and no one objected.

Fees

are set at 33 1/3% of the GSA or \$216,666.66, which represents a reasonable percentage of the total funds paid by Defendant and rewards counsel for any risk they took in this case. The Court finds there are no special circumstances warranting a higher percentage recovery than the one-third fee award that is typically provided.

As

for costs, Class Counsel is requesting \$22,612.10.

(Matavosian Decl. ISO Final, ¶46

and Exhibit B thereto; Lapuyade Decl. ISO Final, ¶11 and Exhibit 1 thereto;

Zakay Decl ISO Final, ¶13 and Exhibit 2 thereto.)

This is less than the \$30,000 cap provided for in the

Settlement Agreement (¶3.2.2); for which Class

Members were given notice and deemed unobjectionable. (Ayala Decl. Decl., ¶12 and Exhibit A thereto.)

To date, Class Counsel have incurred a total of \$22,612.10 in

costs in this action. Matavosian Decl.

ISO Final, ¶46 and Exhibit B thereto; Lapuyade Decl. ISO Final, ¶11 and

Exhibit 1 thereto; Zakay Decl ISO Final, ¶13 and Exhibit 2 thereto.) The costs include, but are not limited to, filing costs (\$1,435), Legal Document Server,

Inc. costs, OneLegal costs, CPAnalysis Data

Analytics (\$3,025), and mediation costs (\$15,000).

(Ibid.) The costs appear to be

reasonable in amount and reasonably necessary to this litigation.

Based

on the above, the Court awards \$216,666.66 (33.33%) in fees and \$22,612.10 in costs.

D.

Incentive

Award

The Settlement provides for up to \$7,500 for a service payment to

the Named Plaintiff. (Settlement Agreement, ¶3.2.1.)

Plaintiff Woldemariam represents that his contributions to this litigation include, but were not limited to spending 15 hours on the following: obtaining counsel, having numerous conversations with counsel, searching for and providing documents, preparing for mediation, and reviewing the settlement. (Woldemariam Decl., ¶¶5, 10-12.)

Based on the above, as well as the benefits obtained on behalf of the class, the Court grants an enhancement payment in the amount of \$7,500.

E.

Claims

Administration Costs

The claims administrator is requesting \$5,990 for the costs of settlement administration. (Ayala Decl., ¶19.) This is less than the estimated cost of \$6,000 provided for in the Settlement Agreement (¶3.2.3), and disclosed to class members in the Notice, to which there were no objections. (Ayala Decl., ¶12 and Exhibit A thereto.)

Based on the above, the Court awards administration costs in the requested amount of \$5,990.